

Designation of Exempt Person



OMB No. 1506-0012

Please type or print

1 Check appropriate box (see instructions):

a ☐ Initial Designation

b ☐ Biennial Renewal

2 Check appropriate box

a ☐ Exemption Amended

b ☐ Exemption Revoked

Part I Exempt Person

3 Business Name or Name of Sole Proprietor

4 Doing Business As (DBA)

5 Address (Number, Street, and Apt. or Suite No.)

6 City

7 State

8 Zip/Postal Code

9 Taxpayer Identification Number

Part II Basis for Exemption

10 Exemption Basis

a ☐ Bank

b ☐ Government Agency / Governmental Authority

c ☐ Listed company

d ☐ Listed Company Subsidiary

e ☐ Eligible Non-listed business

f ☐ Payroll Customer

11 Effective date of the exemption

M M D D Y Y Y Y

12 Has there been a change in control of the exempt person? For 10(e) and (f) only.

a ☐ Yes b ☐ No

Part III Bank Granting or Revoking Exemption

13 Name of Bank

14 Primary Federal Regulator (check only one)

a ☐ OCC

b ☐ FDIC

c ☐ FRS

d ☐ OTS

e ☐ NCUA

15 Address (Number, Street, and Apt. or Suite No.)

16 City

17 State

18 Zip/Postal Code

19 Taxpayer Identification Number

Sign Here



20 Title of approving official

21 Signature of approving official

22 Date of Signature

M M D D Y Y Y Y

23 Last name of person to contact

24 First name of person to contact

25 Telephone number

() -

26 For Biennial Updates ONLY (see item 1(b))

I certify on behalf of the above listed bank that its system of monitoring the transactions in currency of an exempt person for suspicious activity has been applied as necessary, and at least annually, to the account of this exempt person.

Sign Here



Signature of Approving Official

This form must be used by a bank or other depository institution to designate an eligible customer as an exempt person from currency transaction reporting rules of the Department of the Treasury (31 CFR 103.22). File this form with:

U.S. Department of the Treasury, P.O. Box 33112, Detroit, MI 48232-0112.

Paperwork Reduction Act Notice: The purpose of this form is to provide an effective means for banks and depository institutions to exempt eligible customers from currency transaction reporting. This report is required by law, pursuant to 31 CFR 103.22. Federal law enforcement and regulatory agencies, including the U.S. Department the Treasury and other authorized authorities may use and share this information. You are not required to provide the requested information unless a form displays a valid OMB control number. Public reporting and recordkeeping burden for this form is estimated to average 70 minutes per response, and includes time to gather and maintain information the required report, review the instructions, and complete the information collection. The record retention period is five years. Send comments regarding this burden estimate, including suggestions for reducing the burden, to the Financial Crimes Enforcement Network, Attn: Paperwork Reduction Act, Suite 200; 2070 Chain Bridge Road, Vienna VA 22182-2536

INSTRUCTIONS

General Instructions

Who Must File this Report: Any bank (see definition) that wishes to designate a customer as an exempt person for purposes of CTR reporting must file this report. 31 CFR 103.22(d)(3)(i)

In addition, banks must file this form for the biennial renewal of the exempt person designation of eligible non-listed businesses and payroll customers. 31 CFR 103.22(d)(5)

A bank may, but is not required to, use this form to notify the Treasury that the bank has revoked the designation of a customer as an exempt person.

For further information, please refer to Title 31 of the Code of Federal Regulations, Part 103. See 31 CFR 103.11 for many definitions, and 31 CFR 103.22(d) for information on exemptions to CTR reporting.

When and Where to File -This report must be filed with the U.S. Department of the Treasury: Designation at P.O. Box 33112, Detroit MI 48232-0112. The report must be filed no later than 30 days after the first transaction to be exempted.

Biennial Renewal (for eligible non-listed businesses and payroll customers only): The report must be filed by March 15 of the second calendar year following the year in which the initial designation is made, and by every other March 15 thereafter.

General Definitions

Bank: A domestic bank, savings association, thrift institution, or credit union. See 31 CFR 103.11(c). These may be exempted only to the extent of their domestic (i.e. US) operations.

Biennial Renewal: As provided for by 31 CFR 103.22(d)(5)(ii), the exemption status of all eligible non-listed businesses or payroll customers (see Item 10 e and f) must be updated once every two years, by March 15. This update is a biennial renewal of the exemption for these customers.

Government Agency / Governmental Authority: A department or agency of the United States, a State, or a political subdivision of a State, or (2) an entity established under the laws of the United States, of any State, or political subdivision of a State, or under interstate compact between 2 or more States, exercising governmental authority (i.e. the power to tax, police powers, or the power of eminent domain).

Listed Company: A business, other than a bank, whose common stock or analogous equity interests are listed on the New York Stock Exchange, the American Stock Exchange, or the National Association of Securities Dealers Automated Quotation System - National Market System.

See 31 CFR 103.22(d)(2) for the extent to which listed companies that are financial institutions may be exempted.

Listed Company Subsidiary: A subsidiary, other than a bank, which is owned at least 51%, and is controlled, by a Listed Company.

See 31 CFR 103.22(d)(2) for the extent to which listed companies' subsidiaries that are financial institutions may be exempted.

Eligible Non-Listed business: A business which (1) has had a transaction account at the bank for at least 12 months; (2) frequently engages in currency transactions greater than \$10,000; (3) is incorporated, or organized under the laws of the United States or a State, or is registered as and eligible to do business in the United States; and (4) is not an ineligible business.

Eligible non-listed businesses may be exempted only to the extent of their domestic (i.e. US) operations.

Payroll Customers: A business which (1) has had a transaction account at the bank for at least 12 months; (2) frequently withdraws more than \$10,000 in currency for payroll purposes in order to pay its employees in the US; (3) is incorporated or organized under the laws of the United States or a State, or is registered as and eligible to do business in the United States.

Ineligible Businesses: A business engaged primarily in one or more of the following activities: serving as financial institutions or agents of financial institutions of any type; purchase or sale to customers of motor vehicles of any kind, vessels, aircraft, farm equipment or mobile homes; the practice of law, accountancy, or medicine; auctioning of goods; chartering or operation of ships, buses, or aircraft; gaming of any kind (other than licensed pari-mutuel betting at race tracks); investment advisory services or investment banking services; real estate brokerage; pawn brokerage; title insurance and real estate closing; trade union activities; and any other activities that may be specified by FinCEN.

A business that engages in multiple business activities is not an ineligible business as long as no more than 50% of its gross revenues is derived from one or more ineligible business activities.

United States: The States of the United States, the District of Columbia, the Indian lands (as defined in the Indian Gaming Regulatory Act), and the Territories and Insular Possessions of the United States.

EXPLANATIONS FOR SPECIFIC ITEMS

Item 3 - Business Name or Last Name of Sole Proprietor: List the full legal name of the business being exempted, or the complete last name of the person being exempted.

Item 9 - Taxpayer Identification Number: Generally, the Employer Identification Number of the Exempt Person.

Item 14 - Primary Federal Regulator: OCC = Office of the Comptroller of the Currency; OTS = Office of Thrift Supervision; FRS = Federal Reserve System; FDIC = Federal Deposit Insurance Corporation; NCUA = National Credit Union Administration.

Item 23, 24, 25 - Contact: The last and first name, and the telephone number of the person within the depository institution to be contacted for questions regarding this report.



Financial Crimes Enforcement Network

FinCEN Designation of Exempt Person (FinCEN 110) Electronic Filing Instructions

Release Date October 2012 – Version 1.0

FinCEN DOEP Electronic Filing Instructions

The following instructions apply only to the electronic filing of the Designation of Exempt Person (DOEP) report, FinCEN Form 110, through FinCEN's BSA E-Filing System. These instructions do not apply to any other current or prior Bank Secrecy Act reports.

General Information

The Bank Secrecy Act and its implementing regulations require banks to file currency transaction reports on transactions in currency of more than \$10,000. The regulations also permit a bank to exempt certain customers from currency transaction reporting in accordance with 31 CFR 1020.315.

Banks are the only type of financial institutions that may exempt customers from CTR filing requirements. The term bank is defined in 31CFR 1010.100(d); and includes savings and loan associations, thrift institutions, and credit unions.

The customers that the bank may exempt are called "exempt persons." An exempt person may be a bank, government agency/government authority, listed company, listed company subsidiary, eligible non-listed business, or payroll customer.

A bank may, but is not required to, use this report to notify the Treasury that the bank has revoked the designation of a customer as an exempt person.

FinCEN encourages banks to use the exemption procedure to the fullest extent. FinCEN reminds banks of their continuing obligation to monitor for and report suspicious activity with respect to transactions of all customers, including currency transactions conducted by exempt persons.

General Instructions

1. Filing: The DOEP should be e-filed through the BSA E-Filing System. Go to <http://bsaefiling.fincen.treas.gov/index.jsp> to register. Any bank that wishes to designate a customer as an exempt person must file the DOEP no later than 30 days after the first transaction to be exempted.

2. Report Completion. Complete the report in accordance with instructions for each item. Unless there is a specific instruction to the contrary, leave blank any items that do not apply.

3. Dates. Enter all dates in MM/DD/ YYYY format where MM = month, DD = day, and YYYY = year. Precede any single number with a zero, *i.e.*, 01, 02, etc.

4. Numbers. Enter all numbers such as identifying and telephone numbers as single number strings without formatting or punctuation such as spaces, hyphens, or parenthesis.

5. Addresses. Enter the permanent street address, city, two-letter state or territory abbreviation, and ZIP Code. Provide the apartment number or suite number, if known, following the street address. A non-location address such as a post office box or rural route number should be used only if no other street address information is available. ZIP Codes must be five or nine digits. ZIP Codes must be entered without formatting or special characters such as hyphens. For example, the ZIP Code 12354-6120 would be entered as 123546120. Complete any address item that is known, even if the entire address is unknown. No abbreviations are permitted in city names, which must be completely spelled out. A U.S. city name should match the city name used by the U.S. Postal Service for the associated state and ZIP Code. Use only the authorized U.S. Postal Service state, territory, or military address abbreviations found at <https://www.usps.com/ship/official-abbreviations.htm>. Foreign batch filers who are completing the Transmitter (1A) Record with foreign address information must use only the Canadian and Mexican state/territory/province codes and ISO country codes approved for use by FinCEN. For Canadian provinces and territories use the Canada Post Corporation codes found at <http://www.canadapost.ca/tools/pg/manual/PGaddress-e.asp#1380608>. For Mexican states and territories use the ISO 3166-2 three-letter codes found at http://www.commondatahub.com/live/geography/state_province_region/iso_3166_2_state_code_s. For all countries use the ISO 3166-1 two-letter country codes found at http://www.iso.org/iso/country_names_and_code_elements. Note: The ISO 3166-1 country list includes entries for all U.S. territories. Do not use these U.S. territory entries, which match the U.S. Postal Service abbreviations required in state fields, in any country field.

6. Prohibited Words. Do not use the following words or their variations in fields:

- a) AKA
- b) CUSTOMER
- c) DBA
- d) NONE
- e) NOT APPLICABLE
- f) OTHER
- g) SAME
- h) SAME AS ABOVE
- i) SEE ABOVE
- j) UNKNOWN
- k) VARIOUS
- l) XX

7. Name Editing Instructions. Because many names do not consist of a single first name, middle name, and last name, care must be taken to ensure these names are entered properly in the BSA SAR. This is especially important when there are separate fields for the last name, first name, and middle name. Some names have multiple surnames (family names) or multiple given names that do not include a middle name. Others may not be written in [first name] [middle name] [last name] order. Multiple surnames must be entered in the last name field. For example, Hispanic names may be written in the order of given name, father's last name, and mother's last name, e.g., "Juan Vega Santiago." Thus the surname "VEGA SANTIAGO" would be entered in the last name field with "JUAN" entered in the first name field. Some Hispanic surnames consist of three names (e.g., father's last name, mother's last name, and husband's father's last name in the case of a married woman). In that case all three would be entered in a last name field. Hispanic names do not have middle names, so a multiple Hispanic given name such as "Rosa Maria" would be recorded in the first name field. In some cultures names consist of multiple first names and a single family name, not necessarily in (first name) (last name) order. For example, the Korean name "Kim, Chun Nam" consists of the family name "Kim" and the first name "Chun Nam" separated by a comma and space. There is no middle name. In this case "KIM" would be entered in the last name field and "CHUN NAM" would be entered in the first name field. Nothing is entered in the middle name field. When an individual name is entered in a single name field it should be entered in [first name] [middle name] [last name] order regardless of any foreign naming conventions. Thus, "Kim, Chun Nam" would be entered as "CHUN NAM KIM" in a single name field. Punctuation and special characters should be used in names only when they are part of the name. For example, the period in "Expedia.Com" should be included because it is part of the name. Placing a period after a middle initial would be prohibited because the period is not part of the middle name. Abbreviations in names are prohibited unless an abbreviation is part of a legal name. Entry of middle initials is permitted when a middle name is unknown. A name suffix may be abbreviated, i.e. Junior can be JR, Senior can be SR, the Third can be III, etc.

Specific Instructions

Part I Filing Information

Item 1--Type of filing. Check only one of the three boxes 1a "Initial designation," 1b "Exemption amended," or 1c "Exemption revoked." If the DOEP amends or revokes a prior designation, include the Document Control Number or BSA Identifier of the prior filing in the associated number field. If this number is unknown, enter "00000000000000" in the number field. Leave the number field blank if the filing is an initial designation.

Item 2--Effective date of the exemption. For an initial designation, enter the date of the first transaction to be exempted. For amended DOEPs, if the effective date of the exemption is not being amended, the date entered should be the same date the bank used in the "effective date of the exemption box" when the initial designation was made. If the effective date of the

exemption is being amended, enter the revised date of the first transaction to be exempted. If an exemption is being revoked, enter the day after the date of the last transaction that was exempted.

Part II Exempt Person Information

Check here if entity. Check this box if the exempt person is an entity. Leave this box blank if the exempt person is an individual.

Item 3—Individual’s last name or entity’s legal name of the exempt person. If the exempt person is an entity, enter the full legal name of the exempt person as it is shown on the charter or other document creating the entity. For exempt individuals such as sole proprietorships, enter individual’s last name.

Item 4—First name. Enter the first name of the exempt person if an individual.

Item 5—Middle name. Enter the middle name or initial of the exempt person if an individual.

Item 5—Suffix. Enter the name suffix such as JR, SR, III, etc. of the exempt person if an individual.

Item 6—Alternate name. Enter the individual’s also known as (AKA) or the entity’s doing business as (DBA) name if different from the name entered in Items 3-5. Do not include the acronyms AKA or DBA with the name.

Item 7—Occupation or type of business. Record the occupation, profession, or type of business of the exempt person. Use specific descriptions such as doctor, carpenter, attorney, used car dealership, plumber, truck driver, hardware store, etc. Do not use non-descriptive occupations such as businessman, merchant, retailer, or self-employed without indicating the nature of the occupations, e.g. shoe merchant or self-employed accountant.

Item 7a—NAICS Code. Select the North American Industry Classification System (NAICS) code for the occupation entered in Item 7. Batch filers should only use codes from the NAICS Code list on the BSA E-Filing Web Site at <http://bsaefiling.fincen.treas.gov/main.html>.

Item 8—Address. Enter the permanent street address of the business location of the exempt person. For exempt persons doing business at more than one physical location, enter the local headquarters address or local address of the exempt person. For individuals such as sole proprietorships, enter the business address of the individual rather than the home address, unless they are the same.

Item 9—City. Enter the city associated with the business location of the exempt person. Do not abbreviate the city name (see General Instruction 5).

Item 10—State. Select the state or territory associated with the business location of the exempt person.

Item 11—ZIP Code. Enter the ZIP Code associated with the business location of the exempt person. Use only the five or nine-digit ZIP Code assigned to the address by the U.S. Postal Service.

Item 12—TIN. Enter the Employer Identification Number (EIN) or Social Security Number (SSN) of the exempt person. If a sole proprietorship does not have an EIN, enter the proprietor's Social Security Number (SSN).

Item 13—TIN type. Select the TIN type associated with the TIN in Item 12.

Item 14—E-mail address. Enter the e-mail address associated with the exempt person.

Item 15—Phone number. Enter the telephone number of the exempt person. Enter as a single number string without formatting and punctuation such as spaces, hyphens, or parenthesis.

Item 15a—Extension. Enter the telephone number extension of the exempt person.

Item 16—Type of exempt person. Check only one of the four boxes 16a "Listed company," 16b "Listed company subsidiary, 16c "Eligible non-listed business, or 16d "Payroll customer."

Part III Filer Information

Item 17—Name of bank. Enter the bank's full legal name.

Item 18—EIN. Enter the bank's Employer Identification Number (EIN).

Item 19—RSSD. Enter the bank's Research Statistics Supervision Discount (RSSD) number.

Items 20 - 23—Address. Enter the bank's headquarters address.

Item 24—Primary federal regulator. Select the bank's primary federal regulator from the list. The options are:

Federal Reserve Board (FRB)
Federal Deposit Insurance Corporation (FDIC)
Internal Revenue Service (IRS)

National Credit Union Administration (NCUA)
Office of the Comptroller of the Currency (OCC)

Item 25—Affiliated banks. A parent bank holding company or one of its bank subsidiaries may make the designation of exempt person on behalf of some or all bank subsidiaries of the holding company so long as the designation lists each bank subsidiary that will treat the customer as an exempt person. Check the box in Item 25 and complete an Affiliated Bank Information section on each affiliated bank. Batch filers will complete an Affiliated Bank Information (2B) Record on each affiliated bank.

Part IV Signature

Item 26—Print name. Enter the name of the bank official who authorized the exemption.

Item 27—Title. Enter the title of the bank official who authorized the exemption.

Item 28—Signature. This report is signed when the discrete report or batch file is signed with a personal identification number (PIN) assigned to an appropriate bank official by the BSA E-Filing System.

Item 29—Phone number. Enter the telephone number of the bank official who authorized the exemption.

Item 29a—Extension. Enter the telephone number extension of the bank official who authorized the exemption.

Item 30—Date of signature. If the DOEP is a discrete filing, this date will be supplied by the BSA E-Filing System when the report is signed with a PIN. Batch filers should enter the signature date in the 3A record.

Paperwork Reduction Act Notice: The purpose of this report is to provide an effective means for banks and depository institutions to exempt eligible customers from currency transaction reporting. This report is required by law, pursuant to 31 CFR 1020.315 Federal law enforcement and regulatory agencies, including the U.S. Department of Treasury and other authorized authorities, may use and share this information. You are not required to provide the requested information unless a report displays a valid OMB control number. Public reporting and recordkeeping burden for this report is estimated to average 70 minutes per response, and includes time to gather and maintain information for the required report, review the instructions, and complete the information collection. The record retention period is five years. Send comments regarding this burden estimate, including suggestions for reducing the burden, to Financial Crimes Enforcement Network, Attention: Paperwork Reduction Act, P. O. Box 39, Vienna, VA 22183-0039.

BSA Electronic Filing Requirements for the Designation of Exempt Person (FinCEN Form 110) report